



File No.: EXP202307544

RESOLUTION OF RIGHTS PROCEDURE

Having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On May 18, 2023, a complaint was received by this Agency from Mr. A.A.A. (hereinafter, the complainant) against INFORIESGOS, S.A. (hereinafter, the respondent) for not having duly addressed the right to erasure.

On April 17, 2023, the complainant sent an email to the respondent at the address lopd@infocif.es indicating that "I do not authorize my name A.A.A. to appear on any of your websites nor for you to process my personal data, nor do I authorize you to process my data such as NIF or the Address of ***ADDRESS.1.

I would like to inform you that the company ***COMPANY.1, of which I was the sole administrator, has been dissolved since December 13, 2019, due to bankruptcy, so since you are aware that it is DISSOLVED (...) I find it unreasonable that you maintain the information that is personal in a public manner, especially considering that this address is currently a personal address and not a commercial one (I provide proof of residence).

I REQUEST:

- 1- That a response be provided to the right to erasure for each of the requests described therein.
- 2- That any of my personal data be deleted, such as: Name and surname, personal address, phone number, NIF, etc.
- 3- That any product associated with my name and/or NIF be discontinued as it has not been authorized by me.
- 4- That this right to erasure be communicated to any company with which you share or have transferred my data and that it be executed in the same manner as requested in this document."

SECOND: The complaint was declared inadmissible by resolution of the Director of this Spanish Agency for Data Protection dated June 5, 2023, because there was no evidence that the data controller had been aware of the request to exercise the right to erasure made, considering the email address to which the complainant had directed their request.

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THIRD: Dissatisfied with the resolution, the complainant filed a motion for reconsideration arguing the validity of the email address used.

Following the corresponding Reconsideration Procedure, on June 14, 2023, the Director of this Agency accepted it because new relevant information had been provided regarding the issues raised, which needed to be analyzed by the General Subdirectorate for Data Inspection.

FOURTH: As a result of the acceptance of the aforementioned Reconsideration, in accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, without receiving any response.

FIFTH: The outcome of the transfer procedure indicated in the previous Fact did not satisfy the complainant's requests. Consequently, on August 22, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection decided to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, to present any arguments they deemed appropriate within ten working days, stating, in summary, that they had confirmed that they

did not respond to the complainant. Therefore, as soon as they became aware of this procedure, "(...) the data has been deleted and removed from our systems," also attaching a copy of the email sent to the complainant on September 12, 2023, informing them of this.

SIXTH: Upon reviewing the document submitted by the respondent, it was forwarded to the complainant, so that, within ten working days, they could present any arguments they deemed appropriate, stating, in summary, and as far as this procedure is concerned, that their data still appears on the respondent's website, providing a copy of the search results conducted.

SEVENTH: After granting the respondent a hearing, there is no record of any response being submitted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

The result of this transfer did not allow for the satisfaction of the complainant's claims. Consequently, on August 22, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the

admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to address any infringement of the GDPR, including “ordering the controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons if they do not intend to comply with such a request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;

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e) personal data must be deleted to comply with a legal obligation established in Union or Member State law applicable to the data controller;

f) personal data has been obtained in connection with the provision of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made personal data public and is obliged, under the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of its application, shall take reasonable measures, including technical measures, to inform controllers processing the personal data of the data subject's request for deletion of any link to such personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) to comply with a legal obligation requiring processing of data imposed by Union or Member State

law applicable to the data controller, or to perform a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 could make it impossible or seriously impede the achievement of the objectives of that processing, or

e) for the establishment, exercise, or defense of legal claims.

V

Conclusion

In this case, from the examination of the documentation provided by the parties during the processing of this procedure, it has been established:

- that the claimant requested the deletion of their data published by the respondent on their website associated with a company that has been dissolved, and that their right was not addressed.
- that the respondent, upon becoming aware of this procedure, sent an email to the claimant indicating that they have deleted their data.

Notwithstanding the above, the claimant has provided a copy of the search result of their data in which their data continued to appear.

Consequently, since it has not been established that the data has been effectively deleted, it is appropriate to uphold the claim that is the origin of this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

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FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge INFORIESGOS, S.A. with NIF A98239783, to, within ten working days following the notification of this resolution, send the claimant a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period.

Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to INFORIESGOS, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Data Protection Agency

C/ Jorge Juan, 6
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